

MARKETING SERVICE AGREEMENT

This Marketing Service Agreement ("Agreement") is between _____ ("Seller"), and _____ ("Broker"), a Licensed Real Estate Broker in the state of _____ regarding the marketing of the property located at _____ ("Property").

Overview: Seller seeks the services of a licensed real estate broker to market the property and/or equitable interest for sale to the public.

Agency Relationship: This agreement does not constitute an agency relationship between Seller and Broker.

Marketing Agreement: Whereas the advertisement of property for sale requires a real estate license, this agreement grants Broker the right to market the Property, commencing on _____ and ending on _____ ("Marketing Period").

Seller Compensation to Broker: -

Limit of Broker's Authority and Responsibility: Seller acknowledges and agrees that Broker shall have no exclusive obligation to the Seller and owes no duty to the Seller other than marketing the Property during the Marketing Period and other minimum service requirements as required by law. Broker shall have no duty to advise the Seller or Buyer on any matter related to the Property. Broker may appoint a licensed real estate salesperson under his/her management to manage the marketing of the Property. Broker shall comply with all state laws.

Broker and Partnership Indemnification: Broker has no first-hand knowledge of any material conditions or latent defects requiring disclosure. Broker shall be indemnified and held harmless from Seller and/or equitable title interest holders from any and all claims, causes of action, or damages relating to the marketing and sale of the Property. This includes, but is not limited to: accuracy of Property information, earnest money handling, Seller's negligence or intentional wrongdoing, the existence of undisclosed materials facts about the Property or transaction, or any loss, theft, or injuries relating to Property access as a result of marketing.

Sharing of Buyer's Fees: In the event a Buyer purchases the Property through the Broker's marketing efforts, Broker will receive compensation from a share charged to the Buyer. These commissions are paid in accordance with real estate laws between licensed real estate brokers.

Documents Required Upon Request: Upon Broker's request, Seller will provide Broker with any and all documents pertaining to the purchase of the Property and/or equitable interest. The Broker may withhold

Seller: _____ Broker: _____

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marketing the Property until the requested documents are provided. This may include signing authorizations for involved corporations.

Required Disclosures: The following disclosures must be made to the deeded owner of record ("Owner") to ensure transparency and compliance when Seller is selling equitable interest only). Seller must initial each line.

- ☐ The contract with the Owner contains a Right to **Assign clause**.
- ☐ The contract with the Owner contains a Right to **Market clause** which includes the use of a multiple listing service.
- ☐ The contract with the Owner contains a Right to Show clause and allowable showing terms.
- ☐ The Owner clearly understands the Seller's role as a wholesale real estate investor.

Owner's Information:

Owner's Name _____

Owner's Phone Number: _____

Owner's Email Address: _____

Seller(Wholesaler):

Print Name: _____

Sign: _____ Date: _____

Broker:

Print Name: _____

Sign: _____ Date: _____

Broker/Agent:

Company Name: Current Firm Name Licensed (Fill In Here) Company License #: _____

Broker Name: _____ Broker License #: _____

Phone: 312-685-1595 Email: info@unrealestate.com

Brokerage Address: 1500 Conrad Weiser Pkwy, Womelsdorf, PA 19567

Agent Name: _____ Agent License #: _____

Phone: _____ Email: _____

Seller: _____ Broker: _____